

## 23AHCV00849 23AHCV00849

County: los-angeles

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[TENTATIVE] ORDER DENYING PLAINTIFF'S MOTION TO REOPEN ACTION AND RESTORE CASE TO CALENDER

### I. INTRODUCTION

Plaintiffs Weizhou Tong and Li Tian ("Plaintiffs") bring this action against Defendant Huan Da ("Defendant") asserting claims arising from Defendant's alleged misappropriation of funds that Plaintiffs provided in connection with posting bail for Plaintiff Tong. After Defendant failed to appear, Plaintiffs obtained entry of default and sought a default judgment. The Court continued the Order to Show Cause regarding default judgment on multiple occasions to permit Plaintiffs to submit a compliant default judgment package. When the deficiencies remained unresolved after several continuances, the Court dismissed the action without prejudice on September 30, 2025.

On March 30, 2026, Plaintiffs filed the instant motion to reopen the action and restore the case to the Court's calendar pursuant to Code of Civil Procedure section 473, subdivision (b). At the May 6, 2026, hearing, the Court found counsel's declaration insufficient and continued the matter to permit Plaintiffs to file an amended declaration and memorandum addressing the requirements of section 473. On July 7, 2026, Plaintiffs filed the amended motion.

### II. LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (b) provides for either discretionary or mandatory relief from certain prior actions or proceedings in the trial court. (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1124.)

"Under the discretionary relief provision, on a showing of 'mistake, inadvertence, surprise, or excusable neglect,' the court has discretion to allow relief from a 'judgment, dismissal, order, or other proceeding taken against' a party or his or her attorney. Under the mandatory relief provision, on the other hand, upon a showing by attorney declaration of 'mistake, inadvertence, surprise, or neglect,' the court shall vacate any 'resulting default judgment or dismissal entered.'" [Citation.] Applications seeking relief under the mandatory provision of section 473 must be 'accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect.' The mandatory provision further adds that 'whenever relief is granted based on an attorney's affidavit of fault [the court shall] direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.'" (*Ibid.*; Code Civ. Proc., § 473, subd. (b).)

Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc. § 473, subd. (b).)

### III. ANALYSIS

As an initial matter, Plaintiffs timely sought relief within six months of the September 30, 2025, dismissal. Plaintiffs filed the original motion on March 30, 2026, and, at the May 6, 2026, hearing, the Court continued the matter to permit counsel to file an amended declaration and memorandum addressing the requirements of Code of Civil Procedure section 473, subdivision (b). Thus, the Court finds the motion timely.

Pursuant to Code of Civil Procedure section 473, Plaintiffs seek to vacate the dismissal entered on September 30, 2025, and restore this action to the Court's calendar. Plaintiffs contend the dismissal resulted from counsel's mistake, inadvertence, and neglect caused by a serious medical condition. Counsel has submitted a sworn affidavit accepting full responsibility for the deficiencies in the default judgment package and asserting that his illness substantially impaired his ability to manage the litigation. (Motion, p. 10; Avery Decl., ¶ 9.)

Code of Civil Procedure section 473, subdivision (b), authorizes both mandatory and discretionary relief. Mandatory relief applies when the application is timely, is accompanied by an attorney affidavit of fault, and the dismissal was in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. Discretionary relief requires a showing of mistake, inadvertence, surprise, or excusable neglect.

Here, although counsel has now submitted an affidavit acknowledging fault, the Court is not persuaded that the September 30, 2025, dismissal was caused solely by the attorney error described in the declaration. Rather, the record reflects that the dismissal followed numerous continuances over several months, during which the Court repeatedly identified substantive deficiencies in Plaintiffs' default judgment package and afforded Plaintiffs multiple opportunities to submit compliant materials.

For example, at the May 14, 2025, OSC, the Court advised counsel that the default judgment package required correction and continued the matter to allow Plaintiffs an opportunity to do so. (May 14, 2025, Minute Order.) At the August 13, 2025, OSC, the Court again identified substantive deficiencies, specifically noting an inconsistency between Plaintiffs' alleged actual loss of \$100,000 and the amount sought in the proposed judgment, as well as the absence of any declaration or evidence establishing that Plaintiff Tong suffered an out-of-pocket loss. The Court nevertheless granted Plaintiffs a final continuance to prepare and submit a corrected default judgment package. (Aug. 13, 2025, Minute Order.)

At the continued hearing on September 30, 2025, however, the Court observed that the matter had already been continued four times to allow Plaintiffs to submit a proper default judgment package free of deficiencies. After reviewing Plaintiffs' latest submission, the Court found that issues with the declarations and the amounts requested remained unresolved and dismissed the action without prejudice. (Sep. 30, 2025, Minute Order.)

While the Court is sympathetic to counsel's medical condition and recognizes the difficulties it may have presented, the record demonstrates that counsel was afforded multiple opportunities over many months to correct the deficiencies identified by the Court. Despite those opportunities and explicit guidance, counsel continued to submit deficient default judgment packages. Under these circumstances, the Court cannot conclude that the dismissal resulted solely from the attorney error described in counsel's declaration, but rather from the repeated failure to remedy the deficiencies despite multiple continuances and express warnings from the Court.

Further, the Court finds Plaintiffs have not established excusable neglect warranting discretionary relief under Code of Civil Procedure section 473, subdivision (b). Excusable neglect is tested by whether a reasonably prudent person under the same or similar circumstances might have made the same error. Here, the Court repeatedly identified the deficiencies in Plaintiffs' default judgment package, granted multiple continuances to permit correction, and expressly advised counsel of the issues requiring attention. Despite those opportunities, counsel continued to submit deficient materials. Under these circumstances, the Court cannot conclude that a reasonably prudent attorney would have repeatedly failed to cure the identified deficiencies after receiving explicit guidance from the Court. Thus, discretionary relief is not warranted.

Based on the foregoing, the Court DENIES Plaintiffs motion to reopen this action.

#### IV. ORDER

The Court DENIES Plaintiff's motion to reopen the case.

Plaintiff is to give notice.

Dated: July 14, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT